

Akhlaq Ahmad @ Sundar v. State of U.P.

Allahabad High Court · Division Bench · 8 February 2018 · Writ-C No. 5272 of 2018 · Writ-C No. 5272 of 2018 · **Writ allowed; recovery citation quashed; fresh provisional assessment directed.**

HEADNOTE

Recovery of Rs.7.32 lakh on a theft-of-electricity allegation was quashed because the provisional assessment notice dated 7 September 2016 indicated no date for hearing. Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 requires adequate opportunity; a notice without a hearing date is not in accordance with law. The licensee must issue a fresh provisional assessment, serve it, and pass a reasoned final assessment after considering the consumer's objection, following *Ashok Kumar v. State of U.P.*

FACTUAL SUMMARY

Akhlaq Ahmad challenged recovery of Rs.7,32,296 initiated against him on allegations of theft of electricity. He contended that neither a provisional assessment nor a final bill had been raised, that recovery was started directly, and that the assessment notice had not been served, so he could not object. Counsel for the corporation produced a provisional assessment order dated 7 September 2016. On perusal the High Court found that the notice indicated no date for hearing the consumer.

REUSABLE CONSTRUCTIONS

1. A provisional assessment notice that does not indicate a date for hearing fails to afford the opportunity required by clause 6.8(b) of the U.P. Electricity Supply Code, 2005. ¶ 6-8
2. Where the provisional assessment is not in accordance with law, the recovery citation is liable to be quashed and the licensee directed to issue a fresh provisional assessment, consider the consumer's objection, and pass a reasoned final assessment. ¶ 9

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment notice must indicate a hearing date

HOLDING

A provisional assessment notice in a theft-of-electricity matter that does not indicate a date for hearing does not afford the opportunity required by clause 6.8(b) of the U.P. Electricity Supply Code, 2005. The recovery citation is quashed. The licensee must prepare and serve a fresh provisional assessment; the final assessment shall be made after considering the consumer's objection, with reasons meeting the objection, in the light of *Ashok Kumar v. State of U.P.* ¶ 6-9

FLAG Court applied clause 6.8(b) to a theft assessment; clauses 8.1–8.2 ordinarily govern theft (s.135) assessment.

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion Recovery of Rs.7.32 lakh on a theft-of-electricity allegation was quashed because the provisional assessment notice dated 7 September 2016 indicated no date for hearing. Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 requires adequate opportunity; a notice without a hearing date is not in accordance with law.. ¶ 6-9

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER COMMITTED THEFT OF ELECTRICITY, AND THE QUANTUM OF ASSESSMENT

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Ashok Kumar v. State of U.P. 2008 (6) ADJ (DB)			7-9	Referred

SCJ-1907 · Akhlak Ahmad @ Sundar v. State of U.P. · Writ-C No. 5272 of 2018 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.